

25STCV20116 25STCV20116

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 25STCV20116 Hearing Date: August 12, 2026 Dept: 512

HEARING DATE: Weds., August 12, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Miro,

et al. v. FCA US LLC, et al. COMPL.

FILED: 06-30-25

CASE NUMBER: 25STCV20116

FAC FILED: 12-04-25

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL INITIAL DISCLOSURES UNDER CODE OF CIVIL PROCEDURE SECTION 871.26;

REQUEST FOR SANCTIONS

MOVING PARTY:

Plaintiffs Katey M. Miro and Lucinda

N Miro

RESP. PARTY: Defendant

FCA US, LLC

MOTION TO

COMPEL INITIAL DISCLOSURES UNDER CODE OF CIVIL PROCEDURE SECTION 871.26; REQUEST FOR
SANCTIONS

(CCP § 871.26)

TENTATIVE RULING:

Plaintiffs Katey M. Miro
and Lucinda N Miro's Motion to Compel Initial Disclosures Pursuant to
California Code of Civil Procedure section 871.26 and Request for Monetary
Sanctions is DENIED.

Moving parties are ordered
to give notice.

SERVICE:

[X] Proof of
Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address
(CCP §§ 1013, 1013a) OK

[X] 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 30, 2026 [] Late [
] None

REPLY: None
filed as of August 9, 2026 [] Late [X]
None

ANALYSIS:

I.
Background

On June 30, 2025,
Plaintiffs Katey M. Miro and Lucinda N. Miro ("Plaintiffs") filed a Complaint
for Violation of Statutory Damages against Defendants FCA US, LLC and Bravo
Chrysler Dodge Jeep Ram of Alhambra ("Defendants") and Does 1-10.

On December 4, 2025,

Plaintiffs filed a First Amended Complaint ("FAC") for Violation of Statutory Damages against Defendants.

On January 13, 2026,
Defendant Bravo Chrysler Dodge Jeep Ram of Alhambra filed an Answer to the FAC.

On April 2, 2026, FCA US
LLC filed an Answer to the FAC.

On June 16, 2026,
Plaintiffs filed the instant Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure section 871.26 and Request for Monetary Sanctions (the "Motion") against FCA US.

On July 30, 2026, FCA US
filed an Opposition.

No Reply has been filed.

II.

Legal

Standard and Discussion

Plaintiffs move to compel FCA US's further disclosures under Code of Civil Procedure section 871.26 and requests the Court impose sanctions against FCA US under Code of Civil Procedure section 871.26 as well. The Motion states that FCA US has provided initial disclosures under Code of Civil Procedure section 871.26 but contends the disclosures are deficient as they are unverified and do not account for records Plaintiffs believe are in FCA US's possession. (See Motion, pp. 6-14.)

In Opposition, FCA US states the Motion should be denied because Plaintiffs' counsel failed to meet and confer in good faith regarding the initial disclosures; the Code of Civil Procedure does not require verified initial disclosures, and Plaintiffs improperly rely on the a code provision from the Discovery Act to state verifications are required in this instance; and FCA US provided initial disclosures and supplemental disclosures prior to the instant hearing. (See Opp., pp. 1-11.) Further, FCA US states sanctions are unwarranted as FCA US has complied and acted in good faith regarding the initial disclosures. (See Opp., pp. 11-12.)

Code of Civil Procedure section 871.26

“only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to [Code of Civil Procedure section 871.20]” and requires that within 60 days after filing a responsive pleading, all parties shall provide to all other parties an initial disclosure and documents pursuant to Code of Civil Procedure section 871.26, subdivisions (f), (g), and (h).

Here, the parties do not dispute that
Code of Civil Procedure section 871.26 applies to the instant action.

The Motion is brought as a motion to
compel initial disclosures under Code of Civil Procedure section 871.26;
however, the Court finds the Motion is, in substance, a motion to compel
further responses to FCA US's mandatory disclosures provided to Plaintiffs.
Indeed, the parties do not dispute that FCA US provided initial disclosures
under Code of Civil Procedure section 871.26 to Plaintiffs (see Motion; Opp.,
Cronin Decl., pp. 1-4, Exhs. 1, 3-4); rather, Plaintiffs' Motion centers on the
assertion that FCA US provided disclosures were insufficient for various
reasons. (See Motion.)

Code of Civil Procedure section 871.26

does not provide a legal mechanism for compelling further responses to
mandatory disclosures provided under Section 871.26, and Plaintiff's Motion is
neither brought pursuant to the Discovery Act nor complies with the Discovery
Act's requirements for a motion to compel further responses.

Further, the Motion attempts to add on
Discovery Act requirements, such as verifications, into Code of Civil Procedure
section 871.26 without any supporting legal authority.

The Court may not grant relief that is
not contemplated or permitted by the moving statute and referenced legal
authority, and Plaintiff fails to provide any legal authority authorizing or
mandating the Court to proceed otherwise.

For
these reasons, the Motion is DENIED.

III.

Conclusion

& Order

For the foregoing reasons,

Plaintiffs Katey M. Miro and Lucinda N Miro's Motion to Compel Initial

Disclosures Pursuant to California Code of Civil Procedure section 871.26 and

Request for Monetary Sanctions is DENIED.

Moving parties are ordered

to give notice.